

PURCHASE ORDER



ITC LIMITED , REGISTERED OFFICE, VIRGINIA HOUSE, 37 J. L. NEHRU ROAD, KOLKATA-700071
 TELEPHONE : 2288 9371 / 2288 9406, FAX : 91-33-22882251/22452253/22882257 e-mail : enduringvalue@itc.in
INDIA TOBACCO DIVISION Corporate Identity Number : L16005WB1910PLC001985 Visit us at www.itcportal.com

Supplier: HUGOPHARM TECHNOLOGIES PRIVATE
 LIMITED Unit no 8, JOGANI INDUSTRIAL ESTATE
 541, SENAPATI BAPAT MARG, DADAR WEST
 MUMBAI, MH, 400028, India
 Pan: AACCH1711N, GSTIN : 27AACCH1711N1ZM

ITC Contact Person/Telephone:

Vendor Number. : 238941
Ref. Quotation No.:
Dated :

Attention:

Bill to: ITC Ltd
 NG Plant Nagpur.
 Room No -7, Plot No - M/32, M.I.D.C., Hingna
 Road, Nagpur MH
 440016 India
 Pan: AAACI5950L, GSTIN : 27AAACI5950L1ZA

Purchase Order Number : 4700399580
Date : 04.06.2025

Payment Terms: ITD Payment Term - As
 Mentioned Overleaf

Country Of Origin : India

Inco Terms :

Currency : INR

Sl No	Delivery Date	Item Code	Description	Quantity	UOM	Rate	Per	UOM	Total Price (INR)
10	15.06.2025		Gasket- Spray Nozzle HSN Code:8479 90 40	3.000	EA	4,567.00	1	EA	13,701.00
Total :									13,701.00

1. Invoice/Billing address and Shipping address will be:

ITC Limited
 Room No. 7, Plot No. M/32
 M.I.D.C., Hingna Road
 Nildoh, Nagpur - 440016
 Maharashtra
 GST No. 27AAACI5950L1ZA

2. Taxes as applicable.

3. Payment Terms: Within 30 days of delivery of materials and receipt of invoice correct in all respect.

4. Freight Charges are included.

5. Transits risks upto delivery site is on vendor account at no extra charge. ITC Limited will not be responsible for any transit damages / loss / theft / robbery / highjack. No other charges will be paid by ITC.

6. Delivery of materials to be accompanied by following;

a. GST Invoice (Original for Buyer & Duplicate for Transporter)

b. Certificate of Analysis (COA)

7. Name and Number of contact person;

Mr. Prosanjeet Ghosh- +91- 6291150713, Mr. D. Borkar- +91-7058733041.

8. 48 hours prior Notice to be provided to ITC Limited before dispatch of materials. ITC Limited reserves the right for pre-dispatch inspection thereof.

9. Material samples will be subject to Quality Testing on receipt against specifications specified. Materials not meeting specifications will be subject to rejection.

Please note that for all inland vendors, the "Delivery Date" refers to the date of receipt at the consignee's address and for all overseas vendors "Delivery Date" refers to the Date of Dispatch from the Vendor.

Sumit Gupta.
 Buyer's Signature

Vendor's Acknowledgement

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10. Goods unloading time at destination - 9:00 am to 4:30 pm. Goods reaching destination after 4:30 pm, will be unloaded on next working day without any detention charge being applicable.

11. Weekly holiday at destination - Wednesday. Goods reaching destination on Wednesday's will be unloaded on next working day without any detention charge being applicable.

12. Required E-Waybill to be generated by the consignor for each consignment and the same to be shared well in advance with following email IDs
 1. prosanjeet.ghosh@itc.in 2. dhananjaysuresh.borkar@itc.in

13. In the event of denial of input tax credit to the Company on account of any non-payment of taxes or non-compliance by you with the GST Laws, the Company shall be entitled to recover such loss along with applicable interest" freight included.

Please note that for all inland vendors, the "Delivery Date" refers to the date of receipt at the consignee's address and for all overseas vendors "Delivery Date" refers to the Date of Dispatch from the Vendor.

Sumit Gupta.
 Buyer's Signature

Vendor's Acknowledgement

TERMS & CONDITIONS

TERMS & CONDITIONS OF PURCHASE ORDER

1. SPECIFICATIONS

All goods must be strictly of the approved specimen in terms of quality, quantity, description, specification, weight and measurement. Any variation, unless previously agreed to and confirmed by the Company, shall lead to automatic rejection of the order and no liability will accrue to the Company for such rejection.

2. PACKING AND FORWARDING

a. Wherever as per the terms of contract, title to the goods does not pass to the Company on delivery of the goods to the transporter, it shall be your responsibility to arrange for secure packing and safe delivery. Short delivery, breakages or damages will be deducted pro-rata from bills unless replaced with goods of identical specifications free of cost.

b. The Company will not in any event accept any responsibility for loss or damage to goods in transit. Further, incidental tax cost (if any) related to the goods lost/damaged in transit shall be borne by you.

c. Packing and forwarding charges will not be paid unless previously agreed and approved in writing.

3. DELIVERY

a. The Company retains the right to inspect the goods before the delivery.

b. You shall arrange to deliver the goods as advised by the Company and on failure to effect such delivery, the Company reserves the right to rescind the order.

4. RISK AND TITLE

The risk in and title to the goods shall normally pass to the Company only after the delivery of goods by you as per the Company's advice and acceptance of the same by the Company. However, in cases of supply of equipment (AC / IT equipment for instance) which, as per the contract, have to be installed by the supplier at the Company's premises / work sites etc., risk and title to such equipment shall pass to us only on satisfactory installation of the equipment by the supplier.

5. INVOICES AND OTHER DOCUMENTS

a. You shall be solely responsible for issuing and making available to the Company in the manner prescribed under the GST Laws (Central Goods and Services Tax Act, 2017, Integrated Goods and Services Tax Act, 2017, Union Territory Goods and Services Tax Act, 2017, the Goods and Services Tax (Compensation to States) Act, 2017 or the respective State Goods and Services Tax Acts) all requisite documents including but not limited to invoices, advance receipt vouchers, refund vouchers, credit notes, debit notes, bill of supply, e-permits and way bill as the case may be, except where the Company is required to issue such documents in terms of the GST laws.

b. Invoices should be issued on the addresses specified in the Purchase Order and should contain the GSTIN of the Company as mentioned in the Purchase Order.

c. You will be responsible for mentioning correct details in the invoice, including HSN of the goods being supplied to the Company and GST rate and GST amount, if any, applicable on such goods.

6. PRICING

Price shall be exclusive of applicable taxes under GST Laws unless specified otherwise.

7. PAYMENT

a. On satisfactory completion of supply and / or commissioning / installation, the Company will pay you at the approved rates in full and final settlement of all your claims. Where rates are quoted per unit, quantities shall be measured and the prices to be paid shall be calculated according to the approved rates. No payment or allowance will be made for any extra work done or material used without an endorsement on this Order and / or prior written approval in this regard is obtained from the Company's authorized representatives.

b. Payment will be made by Account Payee cheque / demand draft or any other appropriate banking instrument / mechanism normally within one month of submission of bills or acceptance of material whichever is later, subject to other terms and conditions specific or unique to a particular Purchase Order.

c. In case of documents through Bank, advance set of documents must be dispatched through courier on the same day as dispatch of consignment.

d. "Notwithstanding anything contained in this document, if you are a micro enterprise or small enterprise within the meaning of the Micro, Small & Medium Enterprises Development Act, 2006, then the following additional terms are applicable and will prevail in the event of any other conflicting terms of this document:

I. Actual Delivery of Goods shall take place only when such goods have been delivered to us at such place as specified by us along with the corresponding invoice which is compliant with applicable law on a web application/platform or at such place or in such manner as specified by us.

II. Subject to Clause (I) above, payment shall be made to you within 45 (forty-five) days."

8. TAXES & OTHER STATUTORY COMPLIANCES

a. Taxes will be deducted as per current laws.

b. You shall be solely responsible for complying with all the laws, rules and regulations in force, and shall obtain all necessary approvals, permissions, licenses and / or registrations, etc. and maintain such registers and records as are prescribed thereunder. You shall keep such registers and records as may be required under the applicable laws and shall supply certified copies / extracts of the same at our request.

c. You shall be solely responsible for charging applicable taxes under GST laws and other Indirect Tax laws and depositing the same in a timely manner with the relevant authorities. Any interest, penalties or recoveries on account of default by you in depositing such taxes with the relevant authorities is to be solely borne by you on your own account.

d. In cases where payment is to be made under the reverse charge mechanism as per GST laws or other Indirect Tax laws on supplies made by you to the Company, taxes shall be payable by the Company directly to the Government to the extent the Company is statutorily liable and corresponding documents shall also be issued by the Company in such case in accordance with GST laws or other Indirect Tax laws.

e. You shall be solely responsible for making appropriate disclosures in the statutory returns or otherwise within the prescribed time limits. You shall also be responsible for making good any losses suffered by the Company due to negligence, erroneous or incorrect reporting, or inadequate GST law compliance on your part.

f. In the event of discrepancy between the invoice or any other document reported by you in the statutory return(s) and electronic credit register of the Company, you shall be responsible to rectify such discrepancy within 1 day of identification the same.

g. In the event of denial of input tax credit to the Company on account of any non-payment of taxes or non-compliance by you with the GST Laws, the Company shall be entitled to recover such loss along with interest at the rate of 18% percent per annum.

h. In the event of any change in your GST Registration Number(s), you shall inform the Company forthwith of the same and promptly provide particulars of your new GST Registration Number(s). In the event of cancellation of your GST Registration Number(s), you shall inform the Company forthwith of the same and Company's decision regarding continuance of business dealings with you on the occurrence of such event will be final.

i. You represent and warrant that you shall comply with the GST laws and other Indirect Tax laws and the requirements therein. If our company suffers any loss or damage by reason of any action or omission or mistake on your part, you shall be responsible for such losses and damages.

j. In case you obtain registration as a micro enterprise or small enterprise under the Micro, Small & Medium Enterprises Development Act, 2006, and fail to inform the Company in writing that you have obtained such a registration, then the Company shall have the right to set off any amount payable or due to you from the date of such registration as liquidated damages payable to the Company.

k. In the event you fail to inform the Company in writing that you have been re-classified under the Micro, Small & Medium Enterprises Development Act, 2006, then the Company shall have the right to set off any amount payable or due to you from the date of such reverse graduation/re-classification or upward change/re-classification as liquidated damages payable to the Company.

9. INDEMNITY

You shall indemnify and keep the Company indemnified against all losses, claims and demands suffered by or made against the Company and defend the Company against all actions, suits and proceedings taken against the Company in respect of any legislation, statute or enactment and / or rules and regulations or by laws framed thereunder, by virtue of your failure to observe or non-fulfillment of any statutory condition or by virtue of your negligence.

10. SAFETY OF COMPANY'S PROPERTY

Whilst in the premises if Company property is in any way damaged, destroyed or mutilated by you or your employees and / or agents due to any reasons whatsoever, you will be totally responsible for the same and compensate the Company for the ensuing loss.

11. MISCELLANEOUS

a. You shall utilize the assets of the Company solely for the purpose for which they have been entrusted to you. All confidential information, data etc. that have been made available to you shall be utilized solely for the purpose of the work entrusted to you and shall not be disclosed to any third parties under any circumstances whatsoever. The Company reserves its right to pursue all or any remedies, including but not limited to a claim for liquidated damages for any breach of this confidentiality clause by you and / or your employees.

b. You shall not claim any propriety and / or any other right in respect of the Company's Trademark and / or other intellectual property applied to / used in relation to the goods supplied by you hereunder. You shall apply the said Trademarks and / or intellectual property strictly upon / in relation to the goods that are to be supplied to the Company hereunder and such use shall be on behalf of the Company and shall not entitle you to claim any rights in respect thereof.

c. Notwithstanding anything contained hereinabove, in the event that payment is being made against a Proforma Invoice raised by you, then appropriate insurance covering the goods being supplied should be ensured. Further, in such case, you would be required to issue an advance receipt voucher.

d. The failure of the Company in not invoking the conditions hereof or the indulgence shown to you shall not be construed as the waiver by the Company of such conditions and prevent the Company from asserting or invoking these conditions at a later stage.

e. The Company reserves the right to require you to furnish any undertaking with regard to confidentiality and non-disclosure obligation pertaining to any information / data gathered during the course of fulfilling the order.

f. All electrical / IT equipment supplied to the Company including software must be licensed with adequate certification.

g. No e-mail communication will be accepted as legal notice / legal claim served on the Company. Such communication must be served at the appropriate address only by Registered Post and addressed to the appropriate authority.

12. JURISDICTION

All disputes, claims and / or differences arising on any matter relating to this order are subject to the exclusive jurisdiction of the Courts at Kolkata.

13. NO BENEFIT

Acceptance / execution of this order shall be deemed to be (a) confirmation by you that no benefit either in cash or in kind, has been provided by you to any officer or employees, or any relative / associate of any officer or employee, of the Company or of any of its associate companies, in order to secure this order, and (b) an undertaking by you not to provide any benefit, either in cash or kind, to any such officer / employee / relative / associate as reward or consideration either for securing this order or any other matter relating to this order.

14. SCOPE OF WORK

a. The scope of work/service, as specified in the order/contract includes, inter alia, any support/service that may be provided/supplied during the contract period by the vendor/authorised representative of the vendor, directly and/or indirectly, from India and/or overseas, including but not limited to patches/upgrades/downloads/replacement of parts/facilitating support with principal etc. through email/internet/CDs or such other medium/telephone/remote capture etc.

b. All taxes, duties and other statutory levies that may be payable in order to execute the scope of work/service, including the support/services covered by this order/contract are to the vendor and/or its authorised representatives. The agreed price payable by ITC Limited, as stated is the final price to ITC Limited and is exclusive of all taxes, duties and statutory levies.

15. For any grievances, contact us through the email : itd.contact@itc.in.

16. Your acceptance of this Order will be deemed to be an acceptance of the Code of Conduct for Suppliers and Service Providers which is available at - <https://www.itcportal.com/about-itc/policies/sustainability-policy.aspx>